

		Interrogatories, Set One, TC's Form Interrogatories – General, Set One, TC's Form Interrogatories – Employment, Set One, TC's Requests for Production Of Documents, Set One, and Trider's Form Interrogatories – Employment, Set One are all GRANTED. Pimentel to provide code compliant, verified responses to the discovery, without objection, within 10 days. Trider is awarded sanctions in the total amount of \$1,380.00 against Pimentel, payable within 30 days. Trider shall give notice.
5	Reddick vs. General Motors, LLC 2024-01439656	1. Demurrer to Complaint 2. Motion to Strike Complaint Demurrer to Complaint Defendant General Motors LLC's unopposed demurrer to complaint is SUSTAINED with 10 days leave to amend. The fifth cause of action for fraudulent inducement-concealment appears time-barred on its face. (See Code Civ. Proc., § 338, subd. (d).) The claim is based on fraud occurring at the time of the plaintiffs' purchase of the vehicle on or about 5/28/16, and defendant's alleged failure to disclose the "transmission defect." (See Compl. ¶¶ 6, 47-55.) The statute of limitations for fraud is three years, and the claim "is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constitute the fraud." (Code Civ. Proc., § 338, subd. (d).) But California law recognizes a general, rebuttable presumption, that plaintiffs have knowledge of the wrongful cause of an injury (see Grisham v. Philip Morris U.S.A., Inc. (2007) 40 Cal.4th 623, 638), and the complaint alleges the subject "[d]efects and nonconformities to warranty manifested themselves within the applicable express warranty period, including but not limited to

		transmission defects,” and further alleges that defendant was not able to conform the vehicle to warranty after a reasonable number of repair attempts during this time (the express warranty covers repairs only during the express warranty period). (Id. ¶¶ 11, 30; see id. ¶ 7, Ex. A [express warranty terms].) The express warranty period was a maximum of five years. (See id. ¶ 7, Ex. A [express warranty terms].) Five years from 5/28/16 was 5/28/21. Even if the last defect manifested itself on 5/28/21, giving rise to a reason at least to suspect a factual basis for this claim (see id. ¶ 30), three years from that date was 5/28/24. (See Cypress Semiconductor Corp. v. Superior Court (2008) 163 Cal.App.4th 575, 585-586 [“plaintiff has reason to discover a cause of action when he or she “has reason at least to suspect a factual basis for its elements”; accrual “does not wait” until liability becomes “a legal certainty”].) Plaintiffs did not file this action until 11/13/24, past this deadline. “A plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery and (2) the inability to have made earlier discovery despite reasonable diligence.” (Grisham v. Philip Morris U.S.A., Inc., supra, 40 Cal.4th at p. 638.) The complaint fails to specifically plead any such facts at this time. Motion to Strike Portions of Complaint Defendant General Motors LLC’s unopposed motion to strike portions of complaint is GRANTED, with 10 days leave to amend. The only remaining claims in the complaint are for violations of the Song-Beverly Act, under which they seek civil penalties. By seeking civil penalties under that Act, plaintiff has “in effect elected to waive punitive damages.” (Troensegaard v. Silvercrest Industries, Inc. (1985) 175 Cal.App.3d 218, 228.) Thus, without a fraud claim to support
--	--	--

		the prayer for punitive damages, the request for punitive damages fails. Defendant shall give notice of all the above.
7	Gonzalez vs. Koza 2025-01501517	Motion for Leave to File Cross Complaint Defendant/Cross-Defendants Steve Noble, Deann Noble, and Logan Noble's Motion for Leave to File a Cross-Complaint is GRANTED. (Code Civ. Proc. §428.50, subd. (c).) Moving Party has made the requisite showing that leave to file a cross-complaint is in the interests of justice. (See Cal. Code Civ. Pro. §428.50, subd. (c).) Namely, Defendant has shown (1) a shared factual nexus between Plaintiff and Cross-Complainant's claims and Moving Party's claims against the proposed Cross-Defendants, (2) that no prejudice would result from leave to file the Cross-Complaint, (3) that denying the motion would lead to the forfeiture of some of Moving Party's claims alleged in the Cross-Complaint; and (4) denying leave to file the Cross-Complaint would result in a risk of inconsistent rulings and needless re-litigation of issues that will be determined in this lawsuit. In opposition, Defendant/Cross-Complainants Jason Koza and April Koza argue that the motion should be denied based upon a failure to comply with the meet and confer requirement for discovery motions (Code Civ. Proc. §2016.040) and that a three month delay in seeking this relief warrants denial of the motion. The opposition arguments are not persuasive. It is clear to the court that Moving Party seeks leave to file the proposed Cross-Complaint in good faith and no articulable prejudice would result from permitting such a filing, especially in a litigation that is in the early stages, such as this action.